

**MUNICIPAL BUILDING
2101 O'Neil Avenue
Cheyenne, WY 82001
<http://www.cheyennecity.org>**

**CITY COUNCIL MEETING
COUNCIL CHAMBERS
6:00 p.m.**

AGENDA

SEPTEMBER 27, 2010

1. CALL MEETING TO ORDER.
2. CALL ROLL.
3. PLEDGE OF ALLEGIANCE.

4. CONSENT AGENDA.

(All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.)

ACTION: _____

- 5.[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON SEPTEMBER 13, 2010.

ACTION: Approve_____

- 6.[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON SEPTEMBER 20, 2010.

ACTION: Approve_____

7. VOUCHERS:

ACTION: _____

8. PUBLIC HEARING:

- a) Public Hearing to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in the SW1/4 of Section 25, T.14N., R.66W., 6th P.M., Laramie County, Wyoming (generally located north of Pershing Boulevard, between Whitney Road and Christensen Road).

ACTION: _____

- b) Public Hearing for a transfer of ownership and transfer of location for a retail liquor license application filed with the City Clerk's Office for Maverik Inc. d/b/a Maverik, to be located at Yellowstone Road and Gardenia Drive, Cheyenne, WY. (License currently held by Cheyenne 28, LLC d/b/a C.B. & Potts, 1650 Dell Range Boulevard, Cheyenne, WY.)

ACTION: _____

9. ORDINANCE - 3rd READING - Amending Section 10.08.010, State Law adopted, of Chapter 10.08, State Traffic Laws Adopted, of Title 10, Vehicles and Traffic, of Cheyenne City Code pertaining to Ignition Interlock Licenses. (FINANCE COMMITTEE)

ACTION: _____

10. ORDINANCE - 3rd READING - Adopting water rates to be charged to users of the Cheyenne water system for the purpose of mineral exploration outside of the City in Laramie County and other portions of southeast Wyoming. (FINANCE COMMITTEE)

ACTION: _____

11. ORDINANCE - 2ND READING - Amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne city map of the Cheyenne City Code, by changing the zoning classification from CB Community Business District to HI Heavy Industrial District for Lots 8 & 9, Block 1, Cheyenne Business Parkway, First Filing, Cheyenne, Wyoming (located at the northeast corner of the intersection of Progress Circle and Campstool Road). (PUBLIC SERVICES COMMITTEE)

ACTION: _____

12. ORDINANCE - 1ST READING - Creating Chapter 17.116.151 of Title 17, Zoning, of the Cheyenne City Code pertaining to water hauler truck temporary loading sites. (SPONSOR-PATRICK COLLINS)

ACTION: _____

13. RESOLUTION - Authorizing the Mayor and the City Clerk to sign a County Final Plat for Coyote Flats, situated in the SW¼ of Section 25, T.14N., R.66W., 6th P.M., Laramie County, Wyoming (located north of and adjacent to E. Pershing Boulevard, east of Whitney Road). (PUBLIC SERVICES COMMITTEE)

ACTION: _____

14. RESOLUTION - Authorizing the Mayor and the City Clerk to sign a County Final Plat for Deerhaven Subdivision, a replat of Tract 6 and a portion of Tract 7, Allison Tracts; Tract 2, Hermann Meadows Subdivision; Lot 2 and a portion of Lot 1, Block 1, Ley Subdivision, Laramie County, Wyoming (located between E. Fox Farm and E. Jefferson Roads, east of S. Greeley Highway). (PUBLIC SERVICES COMMITTEE)

ACTION: _____

- 15.[CA] RESOLUTION - Authorizing acceptance of the Core Prevention Grant Funds by the City of Cheyenne Police Department on behalf of the Governing Body of the City of Cheyenne for substance abuse and suicide prevention programming. (FINANCE COMMITTEE)

ACTION: Adopt (grant in the amount of \$471,168.00)

- 16.[CA] RESOLUTION - Determining that conditions for annexation required by Wyo. Stat. §15-1-402 exist for the property described as a parcel of land being situated in the SW1/4 of Section 25, T.14N., R.66W., 6th P.M., Laramie County, Wyoming (generally located north of Pershing Boulevard, between Whitney Road and Christensen Road). (SPONSOR- AMBER ASH)

ACTION: Refer to Public Services Committee

- 17.[CA] RESOLUTION - Repealing Resolution #5164; creating a new resolution establishing golf course user fees and categories for the Airport Golf Course and Kingham Prairie View Golf Course; and providing for the division of revenues from said fees to be deposited between the General and Capital Improvement Funds. (SPONSORS - JIM BROWN, PATRICK COLLINS & JIMMY VALDEZ)

ACTION: Refer to Finance Committee

18. PRELIMINARY PLATS/PRELIMINARY ZONE CHANGES:

- a) Preliminary Plat for The Pointe, Fifth Filing, a replat of Lots 13-25, Block 13; Lots 27-69, Block 12; Lots 1-35, Block 16; Lots 1-22, Block 17; Lots 1-27, Block 18; Lots 1-32, Block 19; Lots 1-19, Block 20 and Lot 1, Block 21, of The Pointe; and Lots 37-38 and 71, Block 14, The Pointe, Second Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of East Four Mile and Powderhouse Roads). (PUBLIC SERVICES COMMITTEE)

ACTION: _____

19. LEASES/CONTRACTS/LEGAL:

- a)[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County School District No. 1, for family counseling for school referred students/families. (FINANCE COMMITTEE)

ACTION: Approve (revenue to the City in the amount of \$153,170.00)

- b)[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County School District No. 1, for counseling services to elementary and secondary age children with disabilities on Individual Education Plans. (FINANCE COMMITTEE)

ACTION: Approve (revenue to the City in the amount of \$15,020.00)

- c)[CA] Lease Agreement between the City of Cheyenne and State of Wyoming for parking services in the Cox Parking Structure. (FINANCE COMMITTEE)

ACTION: Approve (revenue to the City, two year agreement in the amount of \$90,720.00)

- d)[CA] Agreement between the City of Cheyenne and the Cheyenne Animal Shelter/Services for Animal Shelter Services.

ACTION: Refer to Finance Committee

- e)[CA] Agreement between the City of Cheyenne and the Cheyenne Animal Shelter/Services for Animal Control Services.

ACTION: Refer to Finance Committee

- f)[CA] Professional Services Agreement/Contract between City of Cheyenne, Parks & Recreation Department and S&S Builders, Inc., for building improvements at the Pioneer Park Center, 1331 Talbot Court, Cheyenne, WY (2007-2010 1% Optional Sales Tax and CDBG grant funds).

ACTION: Refer to Finance Committee

- g)[CA] Agreement between the City of Cheyenne and Frontier Refining, Inc., designating Frontier Refining Inc., as the title sponsor of the annual Superday event for 2011, 2012 and 2013.

ACTION: Refer to Finance Committee

- h)[CA] Agreement between the City of Cheyenne and Sprint Communications Company L.P., for limited use of the Public Right-Of -Way for Telecommunications Cable and Facilities.

ACTION: Refer to Finance Committee

20. CHANGE ORDERS/CONTRACT MODIFICATIONS:

- a)[CA] Contract Modification #1 to Contract #5575 between the City of Cheyenne and JTL Group d/b/a Knife River for additional quantities of asphalt and flagging hours for Dell Range Boulevard resurfacing project (2007-2010 1% Optional Sales Tax). (FINANCE COMMITTEE)

ACTION: Approve (amount not to exceed \$294,625.00)

- b)[CA] Contract Modification #4 to Contract #5321 between the City of Cheyenne and Recco, Inc. d/b/a Five-R Co., for additional work and amenities at the Cheyenne Youth Activity & Community Center, located in David R. Romero South Cheyenne Community Park (Community Facility Fees). (FINANCE COMMITTEE)

ACTION: Approve (amount not to exceed \$16,354.91)

- c)[CA] Contract Modification #2 to Contract #5447 between the City of Cheyenne and Laramie County Community Partnership to change the name of contracting agency from Laramie County Community Partnership to Connection Corner.

ACTION: Refer to Finance Committee

21. CONSIDERATION OF BIDS:

- a)[CA] Consideration of Bid #M-1-11 for furnishing bulk "Ice Control Product" to the City of Cheyenne Public Works Department for use on city streets (2007-2010 1% Optional Sales Tax). (FINANCE COMMITTEE)

ACTION: Approve (amount not to exceed \$330,000.00, Desert Mountain Corp., Riverton)

- b)[CA] Consideration of Bid #R-8-11 for furnishing two new 2010/2011 diesel powered trucks to the City of Cheyenne Public Works Department for use by the Sanitation Division (Solid Waste Fund).

ACTION: Refer to Finance Committee

22. ANNOUNCEMENT/REPORTS/MOTIONS:

- a)[CA] Transfer of ownership for a retail liquor license application filed with the City Clerk's Office for Lambousis Revocable Trust d/b/a The Mayflower, 112 W. 17th St., Cheyenne, WY. (License currently held by Bedrock Seafood, Inc. d/b/a The Mayflower, 112 W. 17th St., Cheyenne, WY). (FINANCE COMMITTEE)

ACTION: Approve

- b) Announcement of Public Meetings to be held October 4, 2010 at 6:00 p.m. and October 5, 2010 at 12:00 p.m. in City Council Chambers for a presentation of a summary of the completed Cheyenne Metropolitan Area Pedestrian Plan and Safe Routes to School Plan by Alta Planning & Design, project consultant.

23. OTHER BUSINESS:

24. ADJOURN.